

HOUSE No. 567

The Commonwealth of Massachusetts

PRESENTED BY:

Tricia Farley-Bouvier

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act fairly reimbursing local school transportation of foster children.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>Tricia Farley-Bouvier</i>	<i>2nd Berkshire</i>	<i>1/14/2025</i>
<i>Steven J. Ouellette</i>	<i>8th Bristol</i>	<i>1/15/2025</i>
<i>Colleen M. Garry</i>	<i>36th Middlesex</i>	<i>1/25/2025</i>

HOUSE No. 567

By Representative Farley-Bouvier of Pittsfield, a petition (accompanied by bill, House, No. 567) of Tricia Farley-Bouvier, Steven J. Ouellette and Colleen M. Garry relative to reimbursing local school transportation of foster children. Education.

[SIMILAR MATTER FILED IN PREVIOUS SESSION
SEE HOUSE, NO. 3570 OF 2023-2024.]

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act fairly reimbursing local school transportation of foster children.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 Chapter 70 of the General Laws is hereby amended by inserting after section 10 the
2 following section:-

3 Section 10A. (a) The department and the department of children and families shall jointly
4 apply for reimbursement from the United States Department of Education, pursuant to any and
5 all applicable federal laws, including, but not limited to the Every Student Succeeds Act, 20 USC
6 § 6301, for the costs incurred by a school district for transportation of a child in foster care
7 between the foster home and the child's school of origin, if placement in that school has been
8 determined to be in the child's best interests. The school district shall certify its costs for such
9 transportation on a form designated by the department for this purpose and complete the form in

10 accordance with the department's instructions. The department shall transmit any reimbursement
11 amounts received from the United States Department of Education to the school district.

12 (b) To the extent that the United States Department of Education does not reimburse the
13 commonwealth in full for the certified costs for such school transportation of a child in foster
14 care, the department shall reimburse the school district for the balance of the certified costs.